

25STCV20825 25STCV20825

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-09-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C406%2C09%2F16%2F2026

Source SHA-256: 6e233f7652941e0314a5280de8f5c26f4935a33304938224e013bd9a302cca6e

Case Number: 25STCV20825 Hearing Date: September 16, 2026 Dept: 406

RENATO ALESIANI,

Plaintiff,

v.

PACIFIC6 ENTERPRISES,

LLC, et al.,

Defendants.

Case No.: 25STCV20825

Hearing Date: September 16, 2026

[TENTATIVE]

order RE:

plaintiff's motions to compel further
responses (CRS# 9117, 4159, 9645)

BACKGROUND

On July 15, 2025, Plaintiff Renato

Alesiani filed this action against Defendants Pacific6 Enterprises, LLC (P6); 6

Founders, LLC (6F); John Molina (Molina); and Todd Lemmis (Lemmis). Plaintiff

filed the operative First Amended Complaint on August 21, 2026, asserting

claims for (1) whistleblower retaliation, (2) breach of oral contract, (3)

fraudulent misrepresentation, (4) negligent misrepresentation, (5) breach of the implied covenant of good faith and fair dealing, (6) waiting time penalties, and (7) accounting.

Plaintiff alleges that he worked for P6 as the Director of Real Estate starting April 2018. Beginning January 2023, Plaintiff allegedly complained that the contractor retained by P6 was not properly licensed and raised related safety concerns. Plaintiff also alleges that his compensation was inconsistent with the agreement reached between the parties. Plaintiff alleges that he was excluded from meetings and responsibilities, and eventually terminated, as retaliation for his whistleblowing. Plaintiff alleges that he was not provided with the requisite severance upon his termination in September 2024. Defendants allegedly claimed that this was because Plaintiff was terminated “for cause.” Plaintiff alleges that P6 and 6F operate as a single enterprise and are alter egos of one another. Molina and Lemmis are allegedly officers, directors, and/or managing agents of P6.

On August 24, 2026, Plaintiff filed the instant three motions to compel P6 and 6F to provide further responses to Requests for Production, Set One and Special Interrogatories, Set One. Defendants have not filed an opposition.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

A party “is entitled to demand answers to its interrogatories, as a matter of right . . . [and] the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 541.) By contrast, the party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (Ibid.)

MEET AND CONFER

A motion to compel further must be accompanied by a meet and confer declaration demonstrating an attempt to resolve the matter informally. (Code Civ. Proc., §§ 2030.300(b)(1), 2031.310(b), 2033.290(b).) The Court finds that Plaintiff has satisfied the meet and confer requirement. (See Holcomb Decl.)

DISCUSSION

Plaintiff's motions and separate statements set forth good cause for the requests, as well as the deficiencies in Defendants' responses. Defendants have not filed an opposition to justify their failure to provide proper responses. Thus, an order compelling further responses is warranted.

Sanctions are also warranted as Defendants present no substantial justification. Plaintiff requests \$4,735 for each motion, reflecting \$835 per hour for 5.5 hours, plus a \$60 filing fee. This is excessive given the simplicity of the motions and lack of opposition. The Court awards a total of \$3,780, reflecting \$450 per hour for 8 hours, plus \$180 in filing fees.

CONCLUSION

Plaintiff's motions to compel further responses are GRANTED. Defendants Pacific6 Enterprises, LLC and 6 Founders, LLC shall provide further responses to the subject discovery within 20 days of today. The Court sanctions Defendants, jointly and severally, in the total amount of \$3,780, to be paid within 20 days of today.